

		However, section 11 of the agreement provides: “Except as expressly provided above with respect to class, collective, or representative actions, the arbitrator will have the exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of this Agreement, including whether any part of this Agreement is unenforceable.” Accordingly, Plaintiff’s unconscionability arguments are delegated to the arbitrator. Plaintiff may renew them in arbitration. IV. <u>Claims Against Simply Fresh</u> Plaintiff contends that regardless of whether he must arbitrate his claims against Adept, he never agreed to arbitrate his claims against Simply Fresh. Plaintiff correctly notes that the agreement doesn’t mention Adept’s clients at all. But he ignores his own FAC, where he alleges Adept and Simply Fresh were joint employers and were the agents of one another. (FAC ¶ 9.) Furthermore, Plaintiff’s substantive allegations repeatedly refer to “Defendants” as a single group, without distinguishing between them. (See generally FAC.) Therefore, Simply Fresh may compel arbitration of Plaintiff’s claims under his agreement with Adept. (See <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, 788 (defendant not party to arbitration agreement could compel arbitration when “the operative complaint alleged workplace violations against Real Time and Pexco as joint employers, referred to both employers collectively as ‘defendants’ without any distinction, and alleged identical claims and conduct regarding unlawful and improper acts”).) V. <u>Further Proceedings</u> Plaintiff is ordered to arbitrate his individual claims (including the individual portion of his PAGA claim) against Adept and Simply Fresh. His class claims are dismissed without prejudice pursuant to the class waiver in the agreement. The representative portion of his PAGA claim is stayed pending completion of the arbitration. (See <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal.5th 1104, 1123-1124.)
8	Padilla vs. Walt Disney Parks and Resorts U.S. Inc. 2019-01077209	Defendant’s Motion for Judgment on the Pleadings Defendant Walt Disney Parks and Resorts U.S., Inc. (WDPR) moves for judgment on the pleadings regarding the Phase One PAGA claims of Plaintiff David Anthony Padilla insofar as those claims are based on meal and rest break violations. For the reasons set forth below, WDPR’s motion is GRANTED WITHOUT LEAVE TO AMEND. WDPR’s unopposed requests for judicial notice are GRANTED. On its own motion, the Court proposes to take judicial notice of the Los Angeles County Superior Court’s model settlement agreement for class/PAGA actions. <u>GROUND’S FOR RULING</u> I. <u>Brief Background</u> Following several summary adjudication and class certification/decertification rulings, there are no more class claims in this matter. Padilla’s PAGA claims remain to be tried. On July 13, 2026, the Court bifurcated the case. A Phase One trial scheduled for January 2027 will deal with Padilla’s individual claims, while a subsequent Phase Two trial will deal with Padilla’s representative claims. WDPR contends Padilla’s PAGA claims based on meal and rest break during the time period relevant to Phase One are barred by claim preclusion following the entry of judgment in <i>Valenzuela v. Walt Disney Parks and Resorts U.S., Inc.</i>, C.D.Cal. No. 8:17-cv-01988-JVS-DFM. Accordingly, it moves for judgment on the pleadings. II. <u>Standard of Review</u> “A motion for judgment on the pleadings is akin to a general demurrer; it

	tests the sufficiency of the complaint to state a cause of action.” (<i>Wise v. Pacific Gas & Electric Co.</i> (2005) 132 Cal.App.4th 725, 738.) Because motions for judgment on the pleadings are subject to the same standards as general demurrers, the Court is guided by long-settled rules. The Court “treat[s] the [motion] as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591.) “The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded.” (<i>Rodas v. Spiegel</i> (2001) 87 Cal.App.4th 513, 517.) “Further, [the Court] gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) “To survive a [motion for judgment on the pleadings], the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) However, “a [motion for judgment on the pleadings] may be [granted] where judicially noticeable facts render the pleading defective.” (<i>Scott v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal.App.4th 743, 751.) III. Discussion The parties agree the Padilla-specific time period for Phase One is October 31, 2016 to April 23, 2017. (Bertagna Decl. (ROA 903) ¶ 3.) Furthermore, there is no dispute that the <i>Valenzuela</i> settlement released PAGA claims arising from meal and rest breaks during the Phase One period. The parties dispute whether that release precludes Padilla’s claims. This analysis is complicated by the wording and structure of the <i>Valenzuela</i> settlement agreement, which long predates current best practices for the settlement of a combined class/PAGA action. For example, the current Los Angeles County Superior Court model settlement agreement for class/PAGA matters has separate definitions for “aggrieved employees,” “class,” and “participating class members,” separate releases applicable to “aggrieved employees” and “participating class members,” and a clear statement that aggrieved employees who opt out of the settlement class are nevertheless covered by the aggrieved employees’ release of PAGA claims. (See Model Agreement, at §§ 1.4, 1.5, 1.34, 5.2, 5.3, and 7.5.4.) The <i>Valenzuela</i> agreement sets a “Total Settlement Amount” of \$2,000,000. (ROA 905, Ex. C, at ¶ 15(a).) From this amount, the parties agreed to deduct attorney’s fees and costs, costs of settlement administration, service payments to the class representatives, a payment to the LWDA pursuant to PAGA, and employer-side payroll taxes. (<i>Ibid.</i>) The amount remaining is the “Net Settlement Proceeds.” (<i>Id.</i>, ¶ 15(b).) The parties allocated \$20,000 “to settle the PAGA claim,” with 25% of the PAGA allocation payable to aggrieved employees (under the version of PAGA in effect at the time) paid to class members as part of their individual settlement payments. (<i>Id.</i>, ¶ 15(g).) That is, individual PAGA payments are included in the Net Settlement Proceeds. The Net Settlement Proceeds are distributed to Participating Class Members according to an allocation plan set forth at ¶ 15(d)-(e). Non-Participating Class Members do not receive individual settlement payments. Instead, their individual shares remain part of the Net Settlement Proceeds to be distributed to Participating Class Members. (<i>Id.</i>, ¶ 15(k).) That is, Non-Participating Class Members <i>do not</i> receive individual PAGA payments, even if they are aggrieved employees. Finally, “Non-Participating Class Members will not be bound by the Settlement.” (<i>Ibid.</i>) The agreement goes on to provide that “Participating Class Members will release . . . any and all . . . claims for . . . civil and statutory penalties” based on the allegations of the operative complaint, “including without limitation . . . PAGA.” (<i>Id.</i>, ¶ 19.) That is, under the terms of the settlement agreement/contract, Non-Participating Class Members are not bound by the release. The federal court granted final approval to the <i>Valenzuela</i> settlement and entered final judgment in a single order. The order notes that
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	the LWDA received notice of the settlement as required by PAGA and did not object or otherwise indicate opposition. (ROA 905, Ex. B, at ¶ 12.) It is undisputed that Padilla opted out of the settlement. (ROA 905, Ex. D, at Ex. B thereto (list of opt-outs from settlement administrator).) WDPR contends that despite his opt-out, his PAGA claims arising from meal and rest breaks are barred. “An employee plaintiff suing [under PAGA] does so as the proxy or agent of the state’s labor law enforcement agencies.” (<i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986.) “Every PAGA claim is ‘a dispute between an employer and the state.’” (<i>Kim v. Reins International California, Inc.</i> (2020) 9 Cal.5th 73, 81.) “Because an aggrieved employee’s action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government.” (<i>Arias, supra</i>, 46 Cal.4th at p. 986.) The <i>Valenzuela</i> settlement resulted in a final judgment on PAGA claims belonging to the state arising from meal and rest break violations (among other violations). Padilla opted out of the settlement, but he remained a “nonparty aggrieved employee[]” who is bound to the same extent he would be if the state had sought civil penalties in the first instance. <i>Robinson v. Southern Counties Oil Co.</i> (2020) 53 Cal.App.5th 476 is on point. There, Robinson filed a PAGA claim against his employer. His tenure at the employer was entirely covered by the settlement period in a prior class action, <i>Gutierrez</i>. The <i>Gutierrez</i> settlement also covered PAGA claims arising during the settlement period. Robinson opted out of the <i>Gutierrez</i> settlement and argued that because he opted out, his PAGA claim was not barred. (<i>Id.</i>, at pp. 480-481.) The appellate court disagreed, explaining: “While Robinson was free to, and did, opt out of the class settlement of any individual claims he may have had, there is no mechanism for opting out of the judgment entered on the PAGA claim.” (<i>Id.</i>, at p. 482.) “The <i>Gutierrez</i> settlement and resulting judgment finally resolved the LWDA’s claims with respect to the violations alleged in that action. Robinson cannot opt out of that settlement and thereafter pursue civil penalties for the same violations again on behalf of the LWDA. Accordingly, the doctrine of claim preclusion bars relitigation of the claim for civil penalties based on the Labor Code violations resolved in <i>Gutierrez</i>.” (<i>Id.</i>, at p. 483.) In opposition, Padilla admits he couldn’t opt out of a PAGA settlement and judgment if he were covered by it. He contends that because the <i>Valenzuela</i> release is expressly limited to Participating Class Members, he isn’t covered. He notes that <i>Robinson</i> says nothing about how the settlement agreement there was structured. WDPR supplies a copy of the <i>Gutierrez</i> agreement in its reply RJN. (ROA 939, Ex. A.) The <i>Gutierrez</i> agreement provides for a Gross Settlement Amount of \$1,912,500, a portion of which consists of money already paid, presumably due to a <i>Pick Up Stix</i> campaign. (<i>Id.</i>, at § III(B)-(C).) From the additional money the employer contributed to the GSA, the parties agreed to deduct a class representative service payment, a separate settlement payment for the class representative’s individual claims, attorney’s fees and costs, costs of administration, and \$35,000 for “settlement of claims under the Private Attorneys General Act.” (<i>Id.</i>, at § III(D)(1)-(4).) The 25% of the PAGA payment allocated to individual PAGA payments would “remain in the Net Settlement Amount for distribution.” (<i>Id.</i>, at § III(D)(4).) The Net Settlement Amount would be distributed to class members as provided in § III(E). The plan of distribution includes no separate distribution for aggrieved employees who opt out of the class settlement, and the agreement provides that class members who opt out “shall not receive any payment of any kind in connection with this Agreement or this Action, [and] shall not be bound by
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		or receive any benefit of this Agreement.” (<i>Id.</i>, at § IV(C)(1).) The agreement further confirms that the administrator “shall pay Settlement Shares” to “all Class Members (who do not submit valid requests to be excluded from the Action).” (<i>Id.</i>, at § IV.J.) Finally, the release language provides, “Plaintiff, the Class, and each Class Member who has not properly submitted a timely and valid request to be excluded from the Action” will release “all claims . . . includ[ing] . . . all such claims arising under . . . the Private Attorneys General Act.” (<i>Id.</i>, at § V.A.) There is no separate PAGA-only release applicable to aggrieved employees. The <i>Gutierrez</i> agreement is functionally identical to the <i>Valenzuela</i> agreement. It states that a payment will be made in exchange for settlement of PAGA claims. It provides that the individual share of the PAGA payment will be paid only to participating class members, not to all aggrieved employees, and it contains a release of PAGA claims that purports to bind only class members. But because the real party in interest on the PAGA claims is the state rather than the employee, Robinson’s PAGA claims were barred even though he opted out of the settlement. The same result holds here. Padilla’s arguments about the scope of the release in the settlement agreement confuse the contractual release language with the effect of entry of judgment on the state’s PAGA claim. Again, Padilla owns no PAGA claim of his own. By operation of law, under <i>Arias</i>, he is bound by the entry of judgment on the <i>Valenzuela</i> PAGA claim to the same extent the state would be if the state itself had filed the <i>Valenzuela</i> PAGA claim. Whether Padilla is bound by the <i>Valenzuela</i> release is irrelevant. Judgment was entered on the state’s PAGA claim. That judgment binds the aggrieved employees, even if they are nonparties. (See <i>Arias, supra</i>, 46 Cal.4th at p. 986.) Accordingly, WDPR’s motion is granted. Because the Court sees no way Padilla can amend his complaint to avoid the preclusive effect of the <i>Valenzuela</i> judgment, leave to amend is denied.
9	Tanski vs. Toyota Motor Sales, U.S.A., Inc. 2026-01573539	Defendant’s Demurrer to Amended Complaint Defendant’s Demurrer to Complaint Defendant’s Motion to Seal Defendant’s Motion to Seal <u>MOTION TO SEAL</u> Defendants Toyota Motor Sales U.S.A., Inc., Toyota Motor Engineering & Manufacturing North America, Inc., and Toyota Motor Manufacturing, California, Inc. move to seal (1) the opening memorandum in support of their demurrer and (2) the settlement agreement attached as Exhibit B to the declaration of Gretchen Eddy. Both motions are DENIED. The clerk is ordered to publicly file ROA 70 (the memorandum) and ROA 71 (the declaration). <u>GROUND S FOR RULING</u> A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)